

THE HOLIDAY-HAPPY SUPREME COURT GOES ON SUMMER VACATION FOR SEVEN WEEKS AND A WEEK EACH FOR DUSSEHRA, DIWALI, HOLI, CHRISTMAS AND NEW YEAR.

Interview **M. VEERAPPA MOILY**

“MPs and judges should not be at odds over assets”

Union Law Minister M. Veerappa Moily spoke to Special Correspondent SHAFI RAHMAN on judicial reforms. Excerpts.

Q. The Judges Bill was met with severe opposition in Parliament. Will you pursue it further?

A. Unless there is a legislative competence issue, you can't oppose the bill. But when they opposed it at the introductory stage, I volunteered to defer it. There is nothing like that it was rejected. I didn't want to elevate the issue as a conflict between Parliament and the judiciary.

Q. There is a growing consensus that the assets of judges should be made public. How do you react to this?

A. The assets of government officials are not in the public domain but only with competent authorities. Public officials and politicians can come out and defend against vexatious charges. Judges cannot go to press or go on fight-

SIPRA DAS



“Judges cannot go to press or go on fighting allegations. If there is a complaint, the declaration of assets can be made use of.”

ing vexatious allegations. At the same time, if there is a complaint against a judge, the declaration can be made use of.

Q. The Government is one of the largest litigants in the country. How will you address the issue?

A. Many litigations happen due to want of decision by appropriate authorities. Officials can reduce litigations by taking firm decisions. It is not the judiciary to be blamed always. We are trying to find out the biggest litigant within the government and work out a mechanism of reconciliation in cases involving the PSUs, the Centre and the state governments.

Q. Do you welcome a National Judicial Commission?

A. By and large there is consensus on setting up the service except that two or three states opposed it on the issue of language. After all, only 25 per cent of the district and additional district judges will be inducted through this service. So we will have the best of the talent, just like IAS or the IPS. But we first want a national debate on this.

pet project—Right to Information. Government officials from various ministries refuse to part with information leading to large number of litigations from citizens. With a wayward land rights recording system, the revenue administration is a perpetual source of civil litigations. At times, courts also end up being recovery agents for financial institutions trying to recoup money. Out of over 1 million cases in Delhi courts, those relating to bounced cheques account for over half of them.

If the attitude of the Government sounds scary, the happenings within the judiciary sound downright sinister. The holiday-happy Supreme Court goes on summer vacation for seven weeks and a week each for Dussehra, Diwali, Holi, Christmas and New Year. Add to this the normal weekends. “Vacations in the higher judiciary must be curtailed by at least 10 to 15 days and the court's working hours should be extended by at least half an hour,” says a Law Commission report. The salaries of judges were hiked by Parliament last February. The CJI, who used to draw Rs 30,000 a month now draws Rs 1 lakh while the salaries of other judges down the line has also gone up. The commission states that with an increase in salaries and perks of the judges, it is their moral duty to respond commensurately.

Efforts to decentralise work in high courts by creating more benches are often opposed by judges and lawyers. There are over 3,200 vacancies for judges at various levels of the judiciary. Recently, the Delhi High Court calculated that, with its present strength, it will take no less than 464 years to clear all pending cases. In large states like Uttar Pradesh, with a huge number of cases, it could then take a millennium.

Sixty-two years after we inherited the legal system from the British, the judiciary is in urgent need of radical reform. A speedy trial is not only required to impart quick justice but also to ensure enduring faith in the judiciary for which the Government and the judiciary have to work together. There is an old legal saying, “If you have the law on your side, pound the law. If you have the facts on your side, pound the facts. If you have neither, pound the table.” From the din of the recent past, it seems that's all the executive and the judiciary are doing. And that's hardly conducive to establishing accountability and restoring credibility of the judiciary. ■